Minutes of Election Committee Meeting No. 7/2026: Post-Count Review of the Ward 3 By-election

Khlong Phai Ngam Town Municipality Election Committee, Chachoengsao · Ref. EC-KPN 07/2026 · Meeting held 22 September 2026 · Minutes approved 28 September 2026

Venue: Council Meeting Room, 2nd floor, Khlong Phai Ngam Municipal Office, 13:30–16:20. **Present:** Wiroj Kanchanasiri (Election Director, chair), Duangporn Yimsamran (Ballot Logistics Officer), Kanokwan Thiprat (Complaints and Legal Officer), Apichart Somboonsuk (Finance Officer), Chalermchai Noiphan (Municipal Clerk, committee member), Siriporn Bunthawi (Administrative Assistant, minutes). **Observers:** one agent each for Candidate No. 1 and Candidate No. 2. **Apologies:** Pratuang Saelim (committee member, ill).

1. Opening and previous minutes

The chair opened the meeting at 13:30 and confirmed a quorum of five members. The minutes of Meeting No. 6/2026 (2 September 2026) were adopted without change. The chair explained that the purpose of this meeting was to close the by-election held on Sunday 13 September 2026 to fill the Ward 3 council seat left vacant when the previous councillor resigned on 30 June 2026.

2. Turnout and confirmation of the result

Duangporn Yimsamran presented the consolidated figures from the eight polling stations of Ward 3 (stations 3/1 to 3/8). The final register contained 6,842 eligible voters. A total of 4,117 voters received a ballot, a turnout of 60.2 %. This was higher than the 54.8 % recorded in Ward 3 at the 2021 general municipal election.

Of the 4,117 ballots found in the boxes, 3,963 were valid, 96 were invalid and 58 were marked "no vote".

- Candidate No. 1, Mr Thawatchai Phromsri: 1,997 votes.
- Candidate No. 2, Ms Ladda Chaiwong: 1,966 votes.

The provisional margin announced on the night of 13 September was 33 votes. After the recount described in item 3 the margin is 31 votes. The committee **confirmed Candidate No. 1, Mr Thawatchai Phromsri, as the elected councillor for Ward 3** and resolved to publish the official result notice at the municipal office notice board and on the municipality's website on 23 September 2026.

3. Recount at polling station 3/4

Kanokwan Thiprat reported that the agent for Candidate No. 2 lodged a written recount request for station 3/4 (Wat Bang Rak multipurpose hall) at 16:40 on Monday 14 September. Under the committee's own by-election rules, a recount request must be made in writing within 48 hours of the end of the count at the station concerned, must name the station, and must state a specific reason. The count at station 3/4 ended at 19:55 on 13 September, so the deadline was 19:55 on 15 September; the request was therefore on time. The reason given was that ballots had been read out too quickly for the agents to follow.

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The recount took place on Thursday 17 September from 09:00 to 11:40 in the Council Meeting Room, in front of both candidates' agents and two committee members. The seal numbers on the box matched the station record. The recount found two ballots for Candidate No. 1 that had been counted as valid but carried a second mark in the box of Candidate No. 2; both were reclassified as invalid. No other change was found. Candidate No. 1 at station 3/4 therefore moved from 263 to 261 votes and the invalid total for the ward rose from 94 to the final 96 shown in item 2.

The committee agreed that the recount had been properly requested and properly carried out and that the change did not affect the result. The agent for Candidate No. 2 accepted the recount figures and signed the recount record. Kanokwan Thiprat noted that a request lodged after the 48-hour limit is refused without a recount, and that a request covering the whole ward instead of a named station is also refused.

> **Note.** The 48-hour limit applies only to recount requests made to this committee. An election petition to a court follows the court's own time limits and is not affected by a refusal of this committee.

4. Ballot paper reconciliation

Duangporn Yimsamran reported on the ballot paper count. The committee ordered 7,200 ballot papers in pads of 50, numbered in series KPN3-00001 to KPN3-07200. Each station received ballots equal to its register size plus a margin of at least 1 %, rounded up to whole pads of 50, so 6,950 papers went to the stations and the remaining 250 were kept in reserve at the municipal office. No reserve papers were issued on polling day.

At the close of poll every station returned its unused ballots in a sealed envelope. The reconciliation for each station, adding ballots issued and unused ballots returned, matched the number received, with one exception. At station 3/7 (Ban Nong Kok School, Building 2) a full pad of 50 unused ballots, serial numbers KPN3-06151 to KPN3-06200, was missing from the returned envelope. It was found on 15 September in the station's equipment box, still sealed and unused, and was handed to the Ballot Logistics Officer the same day with a written statement by the station chair.

The committee agreed that no ballot had been misused, since the pad seal was unbroken, but that the procedure had failed. For future elections, unused pads must be counted in front of the agents and listed by serial number on the close-of-poll form before the envelope is sealed. The station chair will sign this list, and the station's second member will countersign it.

5. Storage and destruction of election materials

All eight ballot boxes, the sealed envelopes of unused ballots, the counting sheets and the voter registers signed on polling day are held in Strongroom B-104 on the ground floor of the municipal office. The strongroom has two locks; one key is held by the Election Director and the other by the Municipal Clerk, and the room is opened only when both are present. Every entry is recorded in the strongroom log.

The committee agreed the following retention rules for the Ward 3 by-election:

1. Ballot papers, counting sheets and unused ballots are kept for 90 days after the official result notice of 23 September 2026, that is until 22 December 2026.

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2. If Kanokwan Thiprat receives notice of an election petition before that date, nothing is destroyed until the petition is closed and the committee has given new written approval.
3. Signed voter registers are kept for 2 years, until 23 September 2028, because they may be needed to check claims of double voting.
4. Destruction is by cross-cut shredding at the municipal office, witnessed by two committee members and one observer invited from each candidate. A destruction record is signed by all witnesses.

Destruction of the ballot papers is provisionally scheduled for Monday 11 January 2027 at 10:00.

6. Allowances for polling station staff

Apichart Somboonsuk reported that 64 polling station staff (eight per station) and 16 security volunteers served on polling day. The allowance rates for this by-election, approved at Meeting No. 5/2026, are higher than at the 2021 election, when a station chair received 1,000 baht and a station member 750 baht for polling day.

- Station chair: 1,200 baht for polling day.
- Station member: 900 baht for polling day.
- Security volunteer: 600 baht for polling day.
- Attendance at the training session of 5 September 2026: 300 baht per person, paid only to staff who signed the attendance sheet.

All allowances are paid by bank transfer by 30 September 2026. Staff who did not give a bank account will receive cash at the Finance counter, Room A-012, on 1 and 2 October 2026 from 09:00 to 15:00 on showing their identity card. Two station members at station 3/6 left before the count ended without the station chair's permission. The committee agreed that they receive the polling-day allowance at half rate, 450 baht each, but keep the training allowance.

7. Complaints received

Kanokwan Thiprat reported that 11 complaints were received between the close of nominations and the end of polling day. Six concerned campaign loudspeaker vehicles, four of which were heard after 18:00 on 12 September, the end of the campaign period; both candidates' teams received a written warning. Three concerned queues at station 3/2 (Wat Khlong Phai hall), where voters using wheelchairs had to climb four steps. Two were about posters on electricity poles. The committee agreed to move station 3/2 to the level ground-floor canteen of Khlong Phai Witthaya School for the 2027 general municipal election. No complaint was found to have affected the result.

8. Action points

- Publish the official result notice on 23 September 2026: Wiroj Kanchanasiri.
- Revise the close-of-poll form to list unused pads by serial number by 30 November 2026: Duangporn Yimsamran.
- Complete all allowance payments and report any unpaid staff by 5 October 2026: Apichart Somboonsuk.

Next meeting: Meeting No. 8/2026, Tuesday 17 November 2026, 13:30, Council Meeting Room.

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